

Court No. - 21

Case :- WRIT - C No. - 13570 of 2023

Petitioner :- Geeta Sharma

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- R.P.S. Chauhan

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

Sri Pranjal Mehrotra, counsel for the respondent Electricity Department prays for and is granted time to obtain instructions and clarify whether any provisional assessment notice was ever served on the petitioner before passing the order of final assessment.

Put up as fresh on 2.5.2023.

In the meantime, no coercive action shall be taken against the petitioner in pursuance of the impugned assessment order.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 24.4.2023

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Court No. - 21

Case :- WRIT - C No. - 13570 of 2023

Petitioner :- Geeta Sharma

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- R.P.S. Chauhan

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

The instant petition is directed against the final assessment bill (undated) requiring the petitioner to pay Rs. 25,50,121/- in a case of alleged theft of electricity. It was preceded by a notice of provisional assessment (undated) received by the petitioner on 31.01.2023 requiring him to file his objection by 14.02.2023. Although, the notice did not afford fifteen days clear notice to the petitioner but she still filed her objections on 06.02.2023 and it is specific case that without fixing any date for hearing and also without passing any speaking order, the impugned final assessment bill was issued.

Shri Pranjal Mehrotra, learned counsel for the respondent-Electricity Department is in receipt of instructions. He states that the respondents realising their mistake have issued a fresh notice on 01.05.2023 requiring the petitioner to file objection, if any, by 08.05.2023 and to appear on the said date for personal hearing. The said notice is taken on record.

It is evident from the fresh notice issued by the respondents that the petitioner had been granted only seven days clear notice which is contrary to Clause 6.8 of the U.P. Electricity Supply Code, 2005. The final assessment notice issued earlier has also not been withdrawn and, therefore, inviting fresh objections would be an empty formality. It is clear that after the instructions were sought the concerned officer- Shri S.K. Pandey, Executive Engineer has

made an attempt to cure the defect but again he had repeated the same mistake. It seems that he is not aware of the provision of law and the Electricity Supply Code, 2005.

We are daily coming across cases where the assessing officers are committing similar mistakes in spite of repeated order by this Court. There is no improvement in the manner in which the cases of theft of electricity are being dealt with.

We require the Managing Director of the Pashchimanchal Vidyut Vitran Nigam Limited to file his personal affidavit and disclose before this Court what action he seeks to take for remedying the situation and particularly in the facts of the instant case.

Put up as fresh on 15.05.2023.

Shri Pranjal Mehrotra will communicate the instant order to the Managing Director, Pashchimanchal Vidyut Vitran Nigam Limited for necessary compliance.

In the meantime, no recovery shall be made from the petitioner in pursuance of the impugned final assessment bill.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 2.5.2023
Rama Kant

Court No. - 21

Case :- WRIT - C No. - 13570 of 2023

Petitioner :- Geeta Sharma

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- R.P.S. Chauhan

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

1. The background facts leading to filing of the instant petition are recorded in our order dated 02.05.2023, which is as follows :-

"The instant petition is directed against the final assessment bill (undated) requiring the petitioner to pay Rs. 25,50,121/- in a case of alleged theft of electricity. It was preceded by a notice of provisional assessment (undated) received by the petitioner on 31.01.2023 requiring him to file his objection by 14.02.2023. Although, the notice did not afford fifteen days clear notice to the petitioner but she still filed her objections on 06.02.2023 and it is specific case that without fixing any date for hearing and also without passing any speaking order, the impugned final assessment bill was issued.

Shri Pranjal Mehrotra, learned counsel for the respondent-Electricity Department is in receipt of instructions. He states that the respondents realising their mistake have issued a fresh notice on 01.05.2023 requiring the petitioner to file objection, if any, by 08.05.2023 and to appear on the said date for personal hearing. The said notice is taken on record.

It is evident from the fresh notice issued by the respondents that the petitioner had been granted only seven days clear notice which is contrary to Clause 6.8 of the U.P. Electricity Supply Code,

2005. The final assessment notice issued earlier has also not been withdrawn and, therefore, inviting fresh objections would be an empty formality. It is clear that after the instructions were sought the concerned officer- Shri S.K. Pandey, Executive Engineer has made an attempt to cure the defect but again he had repeated the same mistake. It seems that he is not aware of the provision of law and the Electricity Supply Code, 2005.

We are daily coming across cases where the assessing officers are committing similar mistakes in spite of repeated order by this Court. There is no improvement in the manner in which the cases of theft of electricity are being dealt with.

We require the Managing Director of the Pashchimanchal Vidyut Vitran Nigam Limited to file his personal affidavit and disclose before this Court what action he seeks to take for remedying the situation and particularly in the facts of the instant case.

Put up as fresh on 15.05.2023.

Shri Pranjal Mehrotra will communicate the instant order to the Managing Director, Pashchimanchal Vidyut Vitran Nigam Limited for necessary compliance.

In the meantime, no recovery shall be made from the petitioner in pursuance of the impugned final assessment bill."

In compliance of the above order, the Managing Director of Pashchimanchal Vidyut Vitran Nigam Limited has filed her affidavit and the stand taken therein is that the impugned assessment notice has been withdrawn as it was defective. It is also

stated that disciplinary proceedings has been initiated against the erring officers. The affidavit also mentions that a fresh provisional assessment notice dated 11.05.2023 has been issued to the petitioner and that fresh assessment order will be passed strictly in accordance with the provisions prescribed under the U.P. Electricity Supply Code, 2005.

Shri Pranjal Mehrotra, learned counsel for the respondent-Electricity Department states that the disciplinary proceeding will be taken to their logical end. He states that the mistake will not be repeated.

Since, the impugned assessment notice has already been withdrawn, therefore, no further direction is required to be issued in this behalf except for the observation that the proceedings which have now been initiated on basis of notice dated 11.05.2023 shall be concluded strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005.

As the petitioner has been subjected to unnecessary harassment on account of issuance of repeated faulty notices by the respondent-Department, we direct for payment of cost of Rs. 10,000/- to the petitioner and we leave it open to respondent no. 2 to recover the said amount from the erring officers.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 15.5.2023
Rama Kant